Notification Waiver Determination

Dhilmar – Anglo American steelmaking coal business

Acquisition	Dhilmar QLD Assets Pty Ltd and Dhilmar QLD Pty Ltd applied for a notification waiver in respect of Dhilmar Ltd.'s (**Dhilmar**) proposed acquisition of Anglo American Australia Limited's (**AAAL**) steelmaking (metallurgical) coal business via: • a share and asset sale of Moranbah North Coal Pty Ltd's 88% interest in the Moranbah North joint venture (**JV**), together with shares in three related operational entities; and • a share purchase of the entire issued share capital of AAAL as described in the transaction documents provided as part of the application (the **Acquisition**). Together, the steelmaking coal business being acquired under the Acquisition includes interests in: • the Moranbah North and Grosvenor JV; • the Capcoal Complex (including the Roper Creek JV and the Aquila mine); • the Dawson Complex; • the Moranbah South Exploration JV; and • the AAAL Brisbane corporate office.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	25 June 2026

Parties to the Acquisition	The acquirers, Dhilmar QLD Assets Pty Ltd and Dhilmar QLD Pty Ltd are subsidiaries of Dhilmar. Dhilmar is a UK-based mining company that owns and operates the Éléonore Gold Mine in Quebec, Canada, a high-grade underground mine, with ore mined from four horizons using sill and stope technique. The Éléonore Gold Mine is Dhilmar's only operating asset. Dhilmar has no operations in Australia, no Australian revenue and does not own or operate any metallurgical coal assets anywhere in the world. The target, AAAL is a subsidiary of Anglo American plc, a global producer and supplier of a range of commodities, including metallurgical coal, copper, diamonds, nickel, iron ore, manganese, and platinum.

	AAAL's steelmaking coal business operates coal mines in the Bowen Basin of Central Queensland, which principally produce metallurgical coal for export from Australia. Metallurgical coal is primarily used in the production of steel and differs from thermal coal which is used primarily in energy generation.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between Dhilmar and AAAL in Australia, as Dhilmar does not have any operations in Australia nor any metallurgical coal assets globally. AAAL primarily produces metallurgical coal for export. b. there are alternative suppliers of metallurgical coal in Australia and globally. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act